

**KINGDOM OF CAMBODIA
NATION – RELIGION – KING**



NON-BANK FINANCIAL SERVICES AUTHORITY

No. 050 FSA.Brk

**PRAKAS
ON
CONDITIONS AND PROCEDURES OF THE REGISTRATION IN INDIVIDUAL
INSURANCE AGENT REGISTER VIA AUTOMATION SYSTEM**

Deputy Prime Minister, Minister of Economy and Finance

And Chairman of Council of the Non-Bank Financial Services Authority

- Having seen the Constitution of the Kingdom of Cambodia;
- Having seen Royal Decree No. NS/RKT/0918/925 dated September 6, 2018, concerning the Nomination of the Royal Government of the Kingdom of Cambodia;
- Having seen Royal Decree No. NS/RKT/0320/421 dated March 30, 2020, concerning the Appointment and Modification of the Composition of the Royal Government of Kingdom of Cambodia;
- Having seen Royal Kram No. NS/RKM/0618/012 dated June 28, 2018, promulgating the Law on the Organization and Functioning of the Council of Ministers;
- Having seen Royal Kram No. NS/RKM/0196/18 dated January 24, 1996, promulgating the Law on the Establishment of the Ministry of Economy and Finance;
- Having seen Royal Kram No. NS/RKM/0121/003 dated January 16, 2021, promulgating the Law on the Organization and Functioning of Non-Bank Financial Services Authority;
- Having seen Royal Kram No. NS/RKM/0814/021 dated August 4, 2014, promulgating the Law on Insurance;
- Having seen Sub-Decree No. 113 ANKr. BK dated July 14, 2021, concerning the Organization and Functioning of Units under the Auspices of the Non-Bank Financial Services Authority;
- Having seen Sub-Decree No. 275 ANKr. BK dated December 30, 2021, concerning the Insurance
- According to the approval of the Council of the Non-Bank Financial Services Authority dated October 12, 2022

HEREBY DECIDES

Chapter 1

General Provisions

Article 1 ..

The objective of this Prakas is to determine conditions and procedures of the registration in individual insurance agent register via automation system in order to ensure the efficiency in governing the professionalism and activities of the individual insurance agent.

Article 2 ..

The scope of this Prakas applies to all individual insurance agent in the Kingdom of Cambodia.

Article 3 ..

Terminologies used in this Prakas are defined as follows:

- **Individual Insurance Agent** refers to a natural person who, on behalf of the insurance company, provides guidance on insurance policies, prepare insurance contracts, collect insurance premiums, and arrange for indemnity, within a clearly specified framework of an agreement between a natural person who is an insurance agent and the insurance company through which commissions from the insurance company are received.
- **Place of abode** refers to a place that a person resides or actually resides within a specific period of time that is not considered as his/her residence.

Chapter 2

Competent Authority and Conditions and Procedures of the Registration in Individual Insurance Agent Register

Article 4 ..

Insurance Regulator of Cambodia, with an initialism of “**I.R.C.**”, has competent authority to register professional individual insurance agent in the Kingdom of Cambodia.

Article 5 ..

All individuals cannot be an insurance agent in the Kingdom of Cambodia without registering as an individual insurance agent with the **I.R.C.** or by using an expired individual insurance agent registration card.

Article 6 ..

An individual who intends to register in individual insurance agent register shall fulfill the following conditions:

- Be at least 18 years old;
- Have residence or place of abode in the Kingdom of Cambodia;
- Complete at least high school;
- Complete Basic Course of Professional Insurance Agent;

- Never commit any misdemeanor or felony within the last 5 (five) years within or outside the Kingdom of Cambodia from the date of request for registration in individual insurance agent register.

Article 7 ..

An individual who intends to be an insurance agent in the Kingdom of Cambodia shall register in an individual insurance agent register via automation system of the **I.R.C.** from anywhere through the website: www.irc.gov.kh.

Article 8 ..

An individual shall fill in all required information and entered into all required conditions according the form mandated in the automation system.

Article 9 ..

Documents for the registration in individual insurance agent register that shall be entered in the automation system of **I.R.C.** in electronic form are as follows:

- Passport or identification card and photo 4x6 (taken within the last 6 months);
- Residence Record Book or Residence Certification Letter;
- At least high school diploma or temporary high school certificate;
- Certification of completion of insurance agent basic course;
- Declaration of the individual that he/she has no record of criminal conviction;
- Administrative fee payment receipt.

After verification and evaluation on all required documents above, **I.R.C.** has the right to approve or reject the registration request in individual insurance agent register within 3 (three) days from the date of receiving sufficient documents.

Article 10 ..

An individual shall ensure that all information applied for individual insurance agent registration and all required documents filled in and entered into the automation system of **I.R.C.** in electronic form are correct and not fraud. In case the registration officers of **I.R.C.** discover that those information and documents are incorrect and fraud, the individual shall be punished according to the applicable law.

Article 11 ..

Individual insurance agent registration card is valid for 1 (one) year from the issued date of the individual insurance agent registration card.

Article 12 ..

Individual insurance agent registration card shall not be the subject for transfer or sale.

Article 13 ..

An individual, who has obtained the registration approval in the individual insurance agent register from the **I.R.C.** can be an insurance agent for 1 (one) life insurance company, 1 (one) general insurance company, and 1 (one) micro-insurance company.

Article 14 ..

Individual insurance agent, who intends to renew the validity of the individual insurance agent registration card, shall make a request to **I.R.C.** within 3 (three) working days before the expiration date of the individual insurance agent registration card.

Article 15 ..

The **I.R.C.** shall not renew the validity of the individual insurance agent registration card for the individual insurance agent who:

- Did not serve as an insurance agent within the period of 180 (one hundred and eighty) days from the issued date of the individual insurance agent registration card, or
- Serve as insurance agent less than 180 (one hundred and eighty) days of the period of individual insurance agent registration card.

Article 16 ..

An individual, who intends to register in individual insurance agent register or to renew the individual insurance agent registration card, shall pay a fee of 40.000 (forty thousand) riels to the bank account of the **I.R.C.**.

Chapter 3

Revocation of Individual Insurance Agent Registration Card

Article 17 ..

I.R.C. shall revoke the individual insurance agent registration card in the following cases:

- Violate Law on Insurance and other relevant regulations and the provisions of this Prakas;
- Violate Code of Conduct of Individual Insurance Agent;
- Commit fraud or give advice to or take part with the clients to commit fraud in insurance sector;
- Give any false advices or improper services to the client;
- Premium diversion or increase a premium greater than the original premium;
- Become an incompetent person;
- Conduct any misdemeanor or felony.

Chapter 4

Penalty provision

Article 18 ..

Every individual insurance agent that violates the provision of this Prakas shall be subject to administrative sanctions by the **I.R.C.** as follows:

- Warning;
- Correction;
- Restriction on the approval or the registration;

- Revocation of the approval or the registration;
- Restriction on the insurance agent professional activities.

Article 19 ..

Shall be deemed as forgery of public document and shall be punishable in accordance with Criminal Code for any individual insurance agent who violates Article 12 of this Prakas.

Article 20 ..

Shall be subject to administrative sanctions as stipulated in Article 18 of this Prakas for any individual insurance agent who exceeds the number of insurance company allowed as set out in Article 13 of this Prakas.

Article 21 ..

Formalities and procedures of administrative sanctions and penalties stipulated in this Chapter shall be determined by the I.R.C..

Any person directly affected by the decision of the I.R.C. as stated in this Chapter may bring a complaint in accordance with the procedures stipulated in the Law on Insurance.

Article 22 ..

Administrative sanctions stated in this Chapter may not restrain the applicability of criminal law and may not compensate any other damages.

Chapter 5

Other provision

Article 23 ..

Individual insurance agents who are currently serving as insurance agents shall be excepted from the requirement to provide at least high school diploma for the registration in individual insurance agent register as stated in the Article 6 of this Prakas and may replace the high school diploma with an at least 2-year (two) working experience as an insurance agent certification letter from a partnered-insurance company.

Chapter 6

Transitional provision

Article 24 ..

Within 6 (six) months from the effective date of this Prakas, an individual who has served as insurance agent in the Kingdom of Cambodia shall apply for registration in individual insurance agent register of I.R.C. in accordance with the formalities and procedures as set out in this Prakas.

Chapter 7

Final Provisions

Article 25.-

Any provision contrary to this Prakas shall be abrogated.

Article 26.-

Director General of the I.R.C., Director of Licensing and Legal Affairs Department, all Department Directors under I.R.C., and all other relevant persons shall implement this Prakas according to their respective role from the date of signature.

Phnom Penh, 27th October 2022

**Deputy Prime Minister, Minister of Economy and Finance and
Chairman of the Council of Non-Bank Financial Services Authority**

(Signed and stamped)

Akka Bandit Sapheacha Aun Pornmoniroth

Place to receive:

- Office of the Council of Ministers
- Ministry of Economy and Finance
- Cabinet of Samdech Akka Moha Sena Padei Techo Hun Sen
Prime Minister of the Kingdom of Cambodia
- National Bank of Cambodia
- Ministry of Commerce
- Ministry of Justice
- Cabinet of Samdech, His Excellency, Her Excellency Deputy Prime Minister
- His Excellency, Her Excellency as Vice-Chairman and Members of
the Council of Non-Bank Financial Services Authority
- **"For Information"**
- As in Article 26
- **"For Implementations"**
- Royal Gazette
- Archives